

Maha Narayan Kushwaha v. Executive Engineer (Presiding Officer)

High Court of Judicature at Allahabad · Division Bench · 27 March 2023 · Writ - C No. 7998 of 2023 · **Notice withdrawn; fresh Supply Code order permitted; writ disposed.**

HEADNOTE

Writ against a theft-dues demand notice disposed after the electricity department withdrew the notice and stated that a fresh decision would follow a hearing. The department was permitted to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Maha Narayan Kushwaha challenged, in the Allahabad High Court, a demand notice dated 12 December 2022 issued by the Executive Engineer (Presiding Officer) for recovery of electricity dues in a theft case. On 15 March 2023 the department sought time to obtain instructions, and the Court restrained coercive action until the next date. On 27 March 2023 counsel for the department stated that the notice had been withdrawn and that a fresh decision would follow after the consumer was heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

Fresh order after withdrawal of a theft-dues demand

HOLDING

Recording the department's statement that the demand notice dated 12.12.2022 had been withdrawn and that a fresh decision would be taken after hearing the consumer, the Court permitted a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005, and disposed of the petition. ¶ 2

FLAG The order names the U.P. Electricity Supply Code, 2005, but no clause number; clause is not silently supplied.

PRINCIPLE TAGS

UP-2005::procedure Once the theft-dues notice was withdrawn, the writ was disposed and the department was permitted to pass a fresh order only by the procedure prescribed in the U.P. Electricity Supply Code, 2005, after hearing the consumer. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ELECTRICITY WAS STOLEN AND WHAT DUES, IF ANY, ARE RECOVERABLE UNDER THE WITHDRAWN NOTICE

The notice was withdrawn by the department. Liability and quantum were left to a fresh order after hearing. ¶ 2